

When issues occur during the export of livestock, we prioritise working closely with the exporter. We also engage with other relevant stakeholders including state and territory governments, the broader livestock export industry and trading partners.

We do this to maintain the health and welfare of animals onboard the vessel or aircraft, and to manage biosecurity concerns where required.

Public comment limitations

During a livestock export incident, we are limited in what we can publicly comment on. Our legal and decision-making obligations around information disclosure vary depending on the nature of the issue.

When considering whether to make a public statement about a consignment, we balance the potential public benefit of doing so against our responsibilities and restrictions under the legislation.

Other factors that may limit our ability to comment include:

- legislative restrictions under the Export Control Act 2020, Export Control (Animals) Rules 2021 and the Privacy Act 1988
- personal, sensitive (including commercially sensitive) or confidential information
- whether the incident (or a related incident) is under active investigation
- the application of procedural fairness principles
- resourcing priorities and responsibilities.

For example, we are unable to disclose information such as details of an exporter or persons involved, employee information, financial arrangements or operational matters. We are also unable to disclose information about pending or settled litigation or other potential regulatory actions.

Communication during a livestock incident

As a result of legal constraints, our public communications may sometimes be ambiguous. It may also take some time before we can publish information on our regulatory activities, including outcomes of our decisions. This is particularly the case where the incident is complex.

We understand this may cause frustration for those with a strong interest in live animal exports or when incidents occur. When we're able to, noting our public comment limitations, we'll seek to address this by:

- publishing incident updates, including information on the health and welfare of impacted livestock (such as through media releases or department spokesperson/address)
- taking relevant steps to provide information about biosecurity concerns where required.

During an incident, we'll keep our stakeholders informed where possible to support transparency, accountability and public confidence in the department.

Learn more about our communication channels in the [stakeholder communication and engagement policy](#).

Read more about:

- [exporting livestock](#), including our role as a regulator
- [published regulatory activities](#)
- [regulating live animal exports](#).

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